

		Cal.App.3d 558, 564.) Potter generally argues it will suffer prejudice due to increased burden of discovery, added costs of preparation, and disruption of the defense. However, Potter does not identify the additional discovery needed due to the amendment. As MM1 points out, no depositions have been taken. Further, discovery remains open, trial is six months away, and Potter has had the proposed SAC since 6/4/26 and ignored the proposed stipulation to file it. Potter has had ample time to respond to the SAC, conduct discovery, and prepare for trial. The court declines to consider the validity of the proposed SAC. Potter can test its legal sufficiency in the appropriate motion after the SAC is filed. (See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 [“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”].) Based on the policy favoring leave to amend, the motion is GRANTED. Plaintiff shall file and serve the SAC within five days. Potter’s request to condition granting leave to amend on any demurrer or motion for judgment on the pleadings directed to the SAC be set for hearing on shortened time, or given calendar priority, is DENIED without prejudice to Potter filing an ex parte application for such relief concurrently or after such demurrer or judgment on the pleadings is filed.
7.	GOLDEN VS. JONES 2026-01538926	MOTION TO SET ASIDE/VACATE DEFAULT Defendants James L. Jones’ Motion to Set Aside Default is DENIED. <u>Plaintiffs’ Evidentiary Objections to the Declaration of James L. Jones</u> The Court SUSTAINS Plaintiffs’ objections as to objection number 6 and OVERRULES the remaining objections. <u>Defendant’s Evidentiary Objections to the Declarations Christopher D. Gordon and Lucas A. Urgoiti</u> The Court declines to rule on Defendant’s evidentiary objections as unnecessary to the analysis. <u>Defendant’s Compliance with California Rules of Court, Rule 3.1113, subdivision (d)</u>

Defendant alleges Plaintiffs have not complied with California Rules of Court, rule 3.1113, subdivision (d) as the opposition is 19 pages.

Rule 3.1113, subdivision (d) provides: “Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages” not including the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service.”

Plaintiffs’ opposition is 15 pages excluding the caption page, table of contents, table of authorities, and proof of service and therefore complies with rule 3.1113.

Code of Civil Procedure Section 473

Code of Civil Procedure section 473, subdivision (b), permits the court to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.”

“To entitle [a party] to relief the acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58 [citations omitted].) “The burden is a double one: the moving party must show a satisfactory excuse for his default, and he must show diligence in making the motion after discovery of the default.” (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410 [cleaned up].)

While “[a] default and default judgment may be set aside pursuant to the provisions of Code of Civil Procedure, section 473, subdivision (b), [] the motion must be made within six months after entry of the default.” (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42.)

The Court entered default against Jones on 4/30/26. (ROA 27.) Defendant’s motion was filed on 7/22/26 and is therefore timely.

Defendant was aware as early as December 2025 Plaintiffs intended to sue him as they told Defendant they intended to do so. (Jones Decl., ¶ 6.) Defendant hired attorney Steven Jordan Madrid who he found on Craigslist and paid him \$1,700 to represent him. (Jones Decl., ¶ 6.) As such, until around mid-January 2026, Defendant states he believed he had an attorney who was doing everything necessary to make sure he was in legal compliance. (Jones Decl., ¶ 6.) Defendant later came to realize Madrid “was just a scammer.” (Jones Decl., ¶ 7.)

Defendant was personally served on 2/4/26. (Jones Decl., ¶ 7.) Defendant once again turned to Craigslist and hired a disbarred attorney, Ramesh Kamath, to assist him in representing himself in the action. (Jones Decl., ¶¶ 8-10, Ex. E.) Defendant contends Kamath, without a law license and without supervision by a licensed attorney, prepared and caused to be filed the Declaration of Demurring or Moving Party in Support of Automatic Extension on 3/27/26. (ROA 15.) The Declaration for Extension of Time was signed by Jones under the penalty of perjury and included the statement, “I intend to file a demurrer, motion to strike, or motion for judgment on the pleadings in this action.” (ROA 15.)

Kamath later prepared an Answer (General Denial) that Defendant signed and was submitted for filing on 5/18/26 but rejected. (Jones Decl. ¶ 8; Ex. D.) Kamath also prepared a draft motion to set aside that was never filed. (Jones Decl. ¶ 8.) In late June 2026, Defendant terminated Kamath’s engagement and was introduced to present counsel through family friends. (Jones Decl., ¶¶ 10, 13.)

“Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied.” (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206.)

Defendant recognizes “he made the repeated mistake of turning to Craigslist to find that legal help because of [his] limited financial means.” (Jones Decl., ¶ 7.) Making this “repeated mistake” particularly after he contends his prior counsel also found on Craigslist “was just a scammer” does not demonstrate “reasonable diligence as a man of ordinary prudence usually bestows upon important business.” While Defendant contends he did so due to his limited financial means, Defendant does not demonstrate how his financial means precluded him from performing any due diligence with respect to his repeated search on Craigslist.

While Defendant further contends he did not know Kamath was a disbarred attorney, he acknowledges she was not hired to be his attorney, but “to provide litigation support and assist [him] in representing [himself] in this action.” (Jones Decl., ¶ 8.) Thus, Defendant demonstrates he intended to move forward representing himself in pro per rather than retain counsel, which he had done previously.

“Pro. per. litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 [citations omitted].) While Defendant contends Kamath did not explain what a default was or explain what deadlines applied (Jones Decl., ¶ 9), it was not reasonable for Defendant to rely on Kamath to

provide necessary legal advice where Defendant acknowledges she was not retained as counsel and Defendant decided to proceed in for pro. For the same reason it was also not reasonable for Defendant to sign court documents, such as the Declaration for Extension of Time, without reading them.

Defendant also contends he suffers from cognitive difficulties which include extreme difficulty concentrating, organizing, completing tasks, losing important papers and other objects, making executive decisions, and reading comprehension. (Jones Decl., ¶ 3.) Jones contends he has been diagnosed with Cyclothemia, which presents symptoms similar to bipolar I disorder, but is not medicated as the medication induces suicidality. (Jones Decl., ¶¶ 3, 5.) Defendant further contends he was under extreme stress at all relevant times caused by his divorce from co-defendant L. Jones, business closures, and housing instability. (Jones Decl., ¶ 14.)

Because “every claimant is likely to be suffering from some degree of emotional upset, . . . it takes an *exceptional showing* for a claimant to establish that his or her disability reasonably prevented the taking of necessary steps.” (*Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1385.)

Defendant does not dispute that despite these cognitive difficulties he was aware of the complaint against him and that he was able to take necessary steps in response, including initially obtaining counsel and subsequent litigation support. Defendant has further demonstrated that despite these cognitive difficulties he made the decision to represent himself in the litigation despite having previously obtained counsel. That Defendant may have been “confused” and “overwhelmed” due to those difficulties as well as other personal circumstances (Jones Decl., ¶¶ 9, 14) does not demonstrate the requisite “exceptional showing” for the relief requested.

Code of Civil Procedure Section 473.5

Defendant also moves to set aside the default pursuant to Code of Civil Procedure section 473.5.

Section 473.5, subdivision (a) provides, “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.

Section 473.5, subdivision (c) provides, “Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party’s lack of actual notice in time to

		defend the action was not caused by the party’s avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.” Defendant does not dispute he was personally served on 2/24/26. (Jones Decl., ¶ 7.) Defendant also demonstrates he was aware of the action as he retained Kamath less than a month later to assist Defendant in representing himself in the action. (Jones Decl., ¶ 8.) Accordingly, the Court finds Defendant has not demonstrated lack of “actual notice” required by section 473.5.
8.	TMVG ENTERPRISES, INC. VS. WORKHORSE & UNICORN LLC 2025-01524893	1. DEMURRER TO CROSS-COMPLAINT Cross-Defendants TVMG Enterprises, Inc. and Vasili Gatsinaris’s Demurrer to the Cross-Complaint is SUSTAINED with 20 days’ leave to amend. First, the Cross-Complaint fails to comply with California Rules of Court, rule 2.111, because it does not have a proper caption on its first page. <u>Uncertainty</u> With regards to uncertainty, the court will only sustain a demurrer for uncertainty if it is so poorly drafted that defendants cannot reasonably respond. (<i>Khoury v. Maly’s of California Inc.</i> (1993) 14 Cal.App.4th 612, 616.). The Cross-Complaint is not so uncertain Cross-Defendants cannot respond. Thus, the demurrer is overruled on these grounds. <u>1st and 2nd Causes of Action – Intentional and Negligent Misrepresentation</u> “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 (cleaned up).) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (<i>Id.</i> at 645 (cleaned up).) “A plaintiff’s burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to